



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
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December 3, 2019

City of Cheyenne Governing Body

Re: Revised Ordinance: PUD Amendment Application for Pointe Plaza PUD

The revised Ordinance in front of the Governing Body to amend the Pointe Plaza PUD now includes the intent of the original text proposed by the applicant. The Governing Body, at their regular meeting on November 25, 2019, recommended the ordinance amending the PUD be changed to reflect the applicant's original proposal.

The Ordinance now reads (changes to original text in **bold underline**):

*"All permanent signage excluding directional / informational signage is to be internally or externally illuminated signage and shall be pan-channel or raised letter type. No flat surface signage is allowed, **except for the property known as Lot 2, Block 3 of the Pointe Plaza subdivision.**"*

Regards,


Seth Lloyd
Planner

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE PURSUANT TO SECTION 2.2.2 PLANNED DEVELOPMENT - REGULATING PLAN OR DEVELOPMENT MASTER PLAN AND SECTION 5.6.2 PUD – PLANNED UNIT DEVELOPMENT DISTRICT OF THE UNIFIED DEVELOPMENT CODE, AMENDING ORDINANCE NO. 3841 BY MODIFYING CERTAIN STANDARDS OF THE ADOPTED DISTRICT, PLANNED UNIT DEVELOPMENT (PUD), FOR LOT 2, BLOCK 3, OF POINTE PLAZA SUBDIVISION, CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED NORTHWEST OF THE INTERSECTION OF SPIRIT LANE AND POWDERHOUSE ROAD)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owners of the property described herein ("Applicant") have submitted an amendment to the Pointe Plaza Planned Unit Development ("PUD") pursuant to Section 2.2.2.b and Section 5.6.2.f of the Cheyenne Unified Development Code ("UDC").

Section 2. That on November 4, 2019, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed amendment to the PUD Final Plan that is the subject of this ordinance, and recommended approval of said amendment to the PUD Final Plan with the recommendation that flat surface signage be allowed throughout the PUD lands.

Section 3. That on November 25, 2019, the Governing Body of the City of Cheyenne recommended that the amendment to the Pointe Plaza PUD Final Plan be limited to the Applicant's property at Lot 2, Block 3 of the Pointe Plaza subdivision, thus meeting the criteria specified in Section 2.2.2.d of the UDC.

Section 4. That in accordance with Section 2.2.2 Planned Development - Regulating Plan or Development Master Plan and Section 5.6.2 PUD – Planned Unit Development District of the UDC, the PUD amendment is hereby approved for the real property described as Lot 2, Block 3 of Pointe Plaza subdivision, Laramie County, Wyoming.

Section 5. That, in accordance with UDC Section 5.6.2, the following standards shall govern this amended PUD District applicable solely for Lot 2, Block 3 of Point Plaza subdivision and addressed as 6705 Faith Drive:

The standards as outlined in Ordinance 3841 with the following modification to Section 12. Signage (additions to the original text are underlined):

"All permanent signage excluding directional / informational signage is to be internally or externally illuminated signage and shall be pan-channel or raised letter type. No flat surface signage is allowed, except for the property known as Lot 2, Block 3 of the Pointe Plaza subdivision."

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____